

1	Castellanos vs. CR&R Environmental Services 30-2023-01318824	<u>Motion to Compel Arbitration</u> Pursuant to Defendant's Notice of Withdrawal of Defendant's Motion to Compel Arbitration and for Dismissal of the Action, or Alternatively, for Stay of the Action Pending Arbitration filed February 16, 2024, (ROA #50), this matter is taken OFF CALENDAR. The court is in receipt of the Joint Stipulation to Stay Action and Submit to Binding Arbitration filed February 16, 2024, (ROA #52). However, the Joint Stipulation is incomplete as it contains no stipulations nor does it include a proposed order. The parties are informed that there is no court order staying the action nor is there a court order that the matter be arbitrated. The parties must submit a complete Joint Stipulation and proposed order if they wish to stay the action and submit the matter to arbitration. The court clerk shall give notice of this ruling.
2	Cliq, Inc. vs. Capital Managers, LLC 30-2021-01220754	<u>Motion to Compel Discovery</u> Pursuant to Cliq's Notice of Withdrawal of Motion to Compel Third-Party Reuven Cyper's Compliance with Deposition Subpoena for Production of Business Records filed February 5, 2024, (ROA #609), this matter is taken OFF CALENDAR.
3	Galasso vs. Maya Linda II, LLC 30-2022-01268325	<u>Motions to Compel Discovery</u> Plaintiff Sharon Galasso's Motion to Compel Defendant Maya Linda II, LLC's Further Responses to Form Interrogatories – General is GRANTED. Plaintiff Sharon Galasso's Motion to Compel Defendant Maya Linda II, LLC's Further Responses to Requests for Admission is GRANTED. Defendant Maya Linda II, LLC is ORDERED to serve full, complete, and verified responses to Form Interrogatories – General Numbers 4.1, 4.2, and 15.1, and Request for Admission Number 34, within 21 days of service of the notice of ruling. Defendant Maya Linda II, LLC is ORDERED to pay

		to Plaintiff Sharon Galasso sanctions in the amount of \$2,495 (1.0 hours x \$500 per hour and 5.0 hours x \$375 per hour in reasonable attorney's fees and \$120 in motion filing fees) within 21 days of service of the notice of ruling. Plaintiff Sharon Galasso (Plaintiff Galasso) moves to compel further responses from Defendant Maya Linda II, LLC (Defendant Maya Linda II) to Form Interrogatories – General Numbers 4.1, 4.2, and 15.1, and Requests for Admission Set One, Number 34. <u>Standard to Compel Further Responses to Interrogatories</u> The Civil Procedure Code instructs that: (a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party. (Code Civ. Proc., § 2030.220) In addition, "[p]arties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." (<i>Scheidig v. Dinwiddie Const. Co.</i> (1999) 69 Cal.App.4th 64, 76; see Code Civ. Proc., § 2023.010, subd. (f) [making evasive response to discovery is misuse of discovery process].) Where the question is specific and explicit, it is improper to provide only a portion of the information sought or "deftly worded conclusionary answers designed to evade a series
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		of explicit questions.” (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 783.) “If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.” (<i>Id.</i> at p. 782.) A responding party may properly refer to documents instead of providing a complete and straightforward answer to an interrogatory only in those cases where the interrogatory seeks information contained in so many records and files that responding to the interrogatory would necessitate making a compilation or summary of the information contained in the records and the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party. (Code Civ. Proc., § 2030.230.) In order to utilize this code section, the interrogatory response must refer to Section 2030.230. (<i>Ibid.</i>) In addition, the response must specify the writings from which the answer may be derived or ascertained and “[t]his specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them.” (<i>Ibid.</i>) Once a party has received responses to its interrogatories, the party may move for an order compelling further responses on the grounds that: (1) an answer to a particular interrogatory is evasive or incomplete; (2) an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) A motion to compel further responses must be served within 45 days after service of a verified response. (Code Civ. Proc., § 2033.290, subd. (c).)
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Standard to Compel Further Responses to Requests for Admission

The Civil Discovery Act requires that responses to requests for admission be "as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc., § 2033.220, subd. (a).)

In addition, each response must:

- (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.
- (2) Deny so much of the matter involved in the request as is untrue.
- (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

(Code Civ. Proc., § 2033.220, subd. (b).)

If a party has been served with responses to its requests for admission, the party may move for an order compelling further responses to requests for admissions on the grounds that: (1) an answer to a particular request is evasive or incomplete or (2) an objection to a particular request is without merit or too general. (Code Civ. Proc., § 2033.290, subd. (a).)

Form Interrogatories

In response to Form Interrogatories Numbers 4.1 and 4.2, Defendant Maya Linda II the same objections that the interrogatories were vague and ambiguous; that they were nonsensical because there was no accident, injury or other occurrence or breach of contract; and that the information sought was no relevant nor reasonable calculated to lead to the discovery of admissible evidence.

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the discovery requests. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

		Here Plaintiff Galasso filed a timely motion to compel further response, (see Decl. of Jonathan D. Dykstra in Supp. of Pltf. Galasso's Mot. to Compel Def. Maya Linda II's Further Responses to Form Interrogatories – General (Dykstra Decl.), ¶ 8, Exh. 8), shifting the burden to Defendant Maya Linda II to justify its objections. Defendant Maya Linda II fails to justify its objections. Defendant Maya Linda contends that Form Interrogatories Numbers 4.1 and 4.2 "generally" apply to personal injury claims, but that does not preclude Defendant Maya Linda II from responding to those interrogatories. Defendant Maya Linda II also argues that the only insurance benefitting it is the policy of the management company Jamboree Management and documents relating to those policies have been delivered to Plaintiff Galasso. However, a party may answer an interrogatory by referring to documents only in those cases where the interrogatory seeks information contained in so many records and files that responding to the interrogatory would necessitate making a compilation or summary of the information contained in the records and the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party. (See Code Civ. Proc., § 2030.230.) In addition, the interrogatory response must specify the writings from which the answer may be derived or ascertained and "[t]his specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them." (<i>Ibid.</i>) Here, Defendant Maya Linda II makes no showing that answering Form Interrogatories Numbers 4.1 and 4.2 would require looking into so many documents or compiling so much information that the burden on Defendant Maya Linda II is equal to or outweighs the burden on Plaintiff Galasso. In
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		addition, Defendant Maya Linda II's responses do not specify the documents. In response to Form Interrogatories Number 15.1, Defendant Maya Linda II objected that the interrogatory was burdensome; oppressive; intended to harass, vex, and annoy; overboard; improper; sought information protected by the attorney-client privilege and the attorney work product doctrine; required proving a negative; vague; ambiguous; overbroad; and compound. Defendant Maya Linda II again fails to justify these objections. In any case, the court finds them all to be without merit. Defendant Maya Linda II also responded to stating that it had already responded to the Complaint; that its denials and defenses were based on documents, facts, and information available to it; that investigation and discovery were continuing; and that "the witnesses are all the members of Maya Linda II, LLC , whose names and addresses have been previously produced to Propounding Party." This response is evasive and incomplete, and therefore, fails to comply with the Civil Discovery Act. Defendant Maya Linda II argues that all of its documents are equally available to Plaintiff Galasso for inspection because Plaintiff Galasso is an owner of Defendant Maya Linda II. However, Defendant Maya Linda II fails to make the showing required to answer an interrogatory by referring to documents. In fact, Defendant Maya Linda II fails to provide sufficient evidence to show that Plaintiff Galasso has access to said documents. The court will grant the motion to compel further responses to the form interrogatories. <u>Requests for Admission</u> Request for Admission Number 34 requests that Defendant Maya Linda II "[a]dmit that the document attached hereto as Exhibit 'A' is A true and correct copy of the operative Operating Agreement for [Defendant Maya Linda II]." In response, Defendant Maya Linda II stated "Admit that Exhibit 'A' is an unsigned document titled Maya Linda II, LLC Limited Liability Company
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		Operating Agreement with a date of March 1, 2001. Discovery is ongoing.” Defendant Maya Linda II’s response was evasive as it neither admits nor denies the statement posed to it. A responding party may not change the call of the request for admission and respond to the changed request for admission. Defendant Maya Linda II also argues that Exhibit A attached to the Requests for Admission is not the authentic Operating Agreement. However, if this is the case, then Defendant Maya Linda II could have simply denied Request for Admission Number 34. The court will grant the motion to compel further responses to the request for admission. <u>Sanctions</u> The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses, “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.300, subd. (d), 2033.290 subd. (d).) A party’s sincere belief in its position is not sufficient to avoid sanctions. (See <i>Clement v. Alegre, supra</i>, 177 Cal.App.4th at pp. 1286-1287 [even if responding party did not intend to be evasive in its discovery responses, its intent is not relevant, as there is no requirement that misuse of discovery process be willful in order to impose sanctions].) Here, Defendant Maya Linda II unsuccessfully opposed both motions to compel further responses and did not show that it acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The court thus must grant Plaintiff Galasso’s request for sanctions. Plaintiff Galasso shall give notice of these rulings.
4		<u>Motions to Compel Discovery</u>